

HOUSE No. 820**The Commonwealth of Massachusetts**

PRESENTED BY:

Kate Donaghue and Frank A. Moran*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enforcing accessibility for voters with disabilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kate Donaghue</i>	<i>19th Worcester</i>	<i>1/15/2025</i>
<i>Frank A. Moran</i>	<i>17th Essex</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/7/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/7/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>2/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/7/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>2/7/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/20/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>2/20/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/20/2025</i>
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>2/20/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/3/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/12/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>3/12/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>3/24/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>4/1/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>4/1/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>4/7/2025</i>

<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>6/9/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>7/29/2025</i>

HOUSE No. 820

By Representatives Donaghue of Westborough and Moran of Lawrence, a petition (accompanied by bill, House, No. 820) of Kate Donaghue, Frank A. Moran and others for legislation to ensure access to polling places for voters with disabilities. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 701 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enforcing accessibility for voters with disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 54 of the General Laws is hereby amended by inserting after section 24 the
2 following section:-

3 Section 24A. To ensure compliance with federal and state laws concerning accessibility
4 for voters with disabilities including the state secretary's polling place accessibility regulations,
5 an agent of the state secretary shall inspect, at least once every four years, each polling place
6 most recently designated under section 24 and each early voting site most recently designated
7 under subsection (b) of section 25B. The inspecting agent shall promptly and specifically report
8 in writing to the state secretary and the city or town clerk every failure to comply with state and
9 federal accessibility laws, and the responsible officials of the city or town shall take immediate
10 action to ensure access for voters with disabilities and within 5 days submit to the state secretary

11 a written plan to comply. If the city or town fails to take such immediate action or to submit a
12 written plan to provide access to voters with disabilities, the state secretary may order the city or
13 town to comply with the law. Not later than December 31 each year, the state secretary shall
14 report in writing to the clerks of the senate and house of representatives on all activities under
15 this section. The attorney general may bring a civil action in the superior court to enforce
16 compliance with those accessibility laws, with a written plan, or with the state secretary's order.
17 The actions provided in this section shall not limit the availability of judicial remedies to any
18 person, official, commission or board.